Supreme Court failed to implement the spirit of its decision, while the state government continued to proclaim formal compliance.

It is hard to diagnose the reasons for the colossal failure to meaningfully implement the Supreme Court's decision. Some scholars have criticized the court for framing its decision too narrowly, by focusing too much on the education, training and remuneration of SPOs rather than the inherent unconstitutionality of establishing an armed civilian movement.[42] This criticism is somewhat harsh, as there was enough in the court's decision to suggest that its apprehensions were categorical rather than narrow. Take, for example, paragraph 75, where the court ordered the state government to take 'all appropriate measures to prevent the operation of any group . . . that in any manner or form seek to take law into private hands'.[43] The court's greater failing, however, was to allow the contempt petitions to linger on even as Salwa Judum took on different avatars.

The state government, on the other hand, executed perfectly the strategy of minimalistic, formal compliance with the court's decision whilst acting against its substantive content. Civil society, and in particular the mainstream media, did not provide it anywhere near the kind of coverage that the most politically salient cases of the time – such as the 2G spectrum case and the Bhullar death penalty case – received.[44] More than ten years, seventy hearings and one significant decision later, the court struggled to keep pace with the shifting manifestations of Salwa Judum.